

**Contracting Officer's Determination
Limiting Competition at or below the Simplified Acquisition Threshold**

1. Contracting Activity:**2. Description of Action:**

Nature: ☒ New Requirement ☐ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order
☐ Blanket Purchase Agreement (BPA)
☐ Order/BPA against FSS Contract # _____
☐ Order against Multiple Award IDIQ Contract # _____
☐ Order against a single award IDC Contract # _____
☐ Modification to existing PO/TO/DO/Call Order # _____

Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours
☐ Cost Reimbursable ☐ Hybrid

Funds: ☒ Operations & Maintenance, Army (OMA) ☐ Other Funds: _____
 FY: _____

Name of Proposed Contractor(s) and Address:

Brand Name Buy: ☐ Yes ☒ No

3. Description of Services or Supplies:

This contract is for a detailed marine forensic investigation service to determine the root cause of the sinking of the M/V Jackie Lee Anderson on July 1, 2025. This is a new requirement and not a modification to an existing purchase order. The total estimated value of the proposed action is _____

The scope of the service requires the contractor, _____ to conduct a comprehensive analysis of the vessel's generator fuel oil supply system. The investigation will include a physical inspection, pneumatic pressure testing of fuel lines,

and the creation of a detailed three-dimensional model of the fuel tanks and piping. This model will be used to simulate various operating conditions to identify the specific circumstances that led to the system's failure.

The primary deliverable is a comprehensive forensic report, which must be submitted within fifty-six days from purchase order award.

Period of Performance: 120 days from date of award.

Total Value: [REDACTED]

4. Authority Cited:

 The statutory authority permitting acquisition of the requirement by other than full and open competition is 41 U.S.C. § 1901(e)(2) as implemented by Revolutionary FAR Overhaul (RFO) 12.102(b). There is only one reasonably available source for this action.

5. Reasons for Authority Cited:

The intended contractor [REDACTED] is the only reasonable source capable of providing the required marine forensic investigation services due to their unique and non-transferable institutional knowledge of the M/V Jackie Lee Anderson.

[REDACTED] was previously engaged in the preliminary investigation following the vessel's sinking. This prior involvement has provided them with an in-depth understanding of the vessel's specific design, its modified generator fuel oil supply system, and the initial findings that point to the root cause of the failure. A new contractor would face a significant and time-consuming learning curve, needing to reconstruct this foundational knowledge from scratch. [REDACTED] can bypass this discovery phase and immediately proceed with the critical and complex tasks outlined in the Scope of Work, including advanced pneumatic testing and three-dimensional modeling.

This pre-existing, vessel-specific expertise is a unique capability that another firm cannot readily replicate without causing significant delays. Therefore, [REDACTED] is the only contractor that can perform this highly specialized forensic analysis within the government's required timeline.

6. Describe the detrimental effects/serious injury to the mission of the requiring activity or to the Government, financial or otherwise, that will result if this justification is not approved and the product or service cannot be provided by the intended sole source Contractor.

Failure to approve this sole source justification would result in serious injury to the mission of the [REDACTED] as well as significant financial damages to the Government.

The M/V Jackie Lee Anderson is a critical asset for maintaining operations on the Ohio River as it is the main vehicle that is used to raise and lower the wicket lifters at the dam. This operation is necessary to hold or release the navigational pool at Olmsted depending on water levels. This frequently occurs with approximately 5 days or less notice and is dependent on the rainfall levels in the Ohio river watershed. Failure to raise the dam during a falling river would cause a loss of navigational pool. This would stop all the navigational traffic through Olmsted, which is the last lock on the Ohio river before it opens into the Mississippi. Loss of pool could also impact several water municipal and commercial water intakes which directly affect the drinking water for homes and power to homes and businesses. Failure to lower the dam during a rising river would also stop navigational traffic. This would also potentially cause structural damage to the wickets which are not designed to be overtopped.

LRL currently has a stand-alone contract in place for a charter vessel to be used while the M/V Jackie Lee Anderson is in dry dock. The cost for this charter vessel is approximately [REDACTED]. If the M/V Jackie Lee Anderson is not repaired, a follow-on contract will need to be put in place to execute the mission at Olmsted Lock and Dam.

The Jackie Lee is currently located in a shipyard awaiting repairs, and the findings from this forensic investigation are on the critical path to completing those repairs and safely returning the vessel to service. Time is of the essence.

If a different contractor is selected, the procurement process and the subsequent knowledge transfer and discovery phase would introduce substantial delays. These delays would directly result in:

1. Mission Injury: Prolonging the unavailability of the M/V Jackie Lee Anderson, thereby impeding the [REDACTED] ability to execute its primary mission of keeping the navigation lanes safely open.
2. Financial Injury: Incurring significant additional costs from extended shipyard and dry-docking fees and the cost of the current charter vessel. Every day the investigation is delayed, the Government incurs unnecessary expenses while the vessel remains non-operational.

Approving this justification to use [REDACTED] the only way to ensure the investigation is completed in the most expeditious manner, which is crucial for minimizing further mission degradation and financial loss.

7. Efforts to Obtain Competition:

Based upon the information presented in Paragraph 6, competition for this action was not feasible. [REDACTED] is the only reasonable vendor available, due to the extremely time-sensitive nature of this action. Due to [REDACTED] previous engagement with the preliminary investigation following the vessel's sinking, they have an in-depth understanding of the vessel's specific design, its modified generator fuel oil supply system, and the initial findings that point to the root cause of the failure.

8. Actions to Increase Competition:

There are no known actions available to increase competition for this action. Operations Division is purchasing the services from [REDACTED] for mission essential use and circumstances.

9. Market Research:

Market research was conducted in March 2026 by the project's contracting and technical team to identify all qualified sources capable of performing the required marine forensic investigation of the M/V Jackie Lee Anderson. The research was focused on identifying firms with the specific expertise and immediate capability necessary to meet the government's critical timeline and technical requirements.

The primary method of market research involved a review of the commercial market for marine engineering and forensic investigation services. While this review confirmed that multiple firms exist in the commercial marketplace that can perform general marine forensic investigations, the research was further refined to assess a critical, non-negotiable requirement for this specific task: pre-existing, direct institutional knowledge of the M/V Jackie Lee Anderson and its unique fuel system modifications.

The results of this refined research concluded that the intended contractor, [REDACTED] is the only source that possesses this unique and essential qualification. Their involvement in the preliminary investigation provides them with an unparalleled understanding of the vessel, the incident, and the specific equipment in question. No other contractor can replicate this vessel-specific knowledge without a significant and unacceptable ramp-up period.

Therefore, while other firms have general capabilities, none were identified that could meet the government's full requirement to perform this analysis without introducing substantial delays and associated costs. The urgent need to complete the investigation while the vessel is in the shipyard makes this pre-existing knowledge a mission-critical factor. The market research is considered current, complete, and meaningful as it concludes that only one source can reasonably satisfy the government's time-sensitive requirements without causing serious financial and mission-related injury.

10. Interested Sources:

N/A; this J&A will be posted within fourteen (14) days after contract award in accordance with Revolutionary FAR Overhaul (RFO) 6.301(b).

11. Other Facts:

This requirement represents the critical, in-depth second phase of a forensic analysis that was previously initiated by [REDACTED] following the sinking of the M/V Jackie Lee Anderson. While this is a new, standalone procurement and not a modification to an existing order, the work is a direct and logical continuation of the preliminary investigation.

The most critical fact supporting this sole source justification is that the findings from this forensic investigation are on the critical path for the vessel's repair and return to service. The vessel is currently incurring daily costs at a commercial shipyard, awaiting the results of this analysis to proceed with final repairs.

Awarding this contract to any other source would necessitate a complete restart of the investigation, leading to significant and unavoidable delays. Such delays would directly harm the government by:

1. Increasing Costs: Incurring substantial, unnecessary expenses for extended shipyard and dry-docking fees.
2. Impacting Mission: Prolonging the time that a critical district asset is out of service, thereby hindering the [REDACTED] mission on the Ohio River.

Therefore, the use of a sole source contract with [REDACTED] is not only justified by their unique, pre-existing knowledge but is also the most prudent and expeditious course of action to mitigate further financial loss and restore mission capability.

12. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

13. Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon comparison with existing contract prices and/or established catalog prices for similar items.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government.